

Stereo. H C J D A-38.
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.77067 of 2025

Muhammad Usman Dar
Versus
Federation of Pakistan through Secretary Interior Division,
Islamabad & others

J U D G M E N T

Date of hearing: 25.02.2026.
Petitioner by: M/s. Abuzar Salman Khan Niazi, Zain Sheikh and Barrister Umar Bin Khalid Cheema, Advocates.
Respondents by: Mr. Muhammad Zain Qazi, Assistant Attorney General.

MUHAMMAD SAJID MEHMOOD SETHI, J.- This constitutional petition has been filed by the petitioner, Muhammad Usman Dar, challenging the legality, validity, and constitutional propriety of the impugned Memorandum dated 05.12.2025, whereby his name was placed on the Exit Control List (“ECL”), as well as the Cabinet decision dated 03.12.2025 forming the basis thereof.

2. The brief factual matrix, as narrated by the petitioner, indicates that the petitioner intended to perform *Umrah* along with his family during the holy month of Ramadan and had booked confirmed return air tickets. Upon arrival at Sialkot Airport from the United Arab Emirates on 06.12.2025, the petitioner was informed by the immigration authorities that his name had been placed on the ECL the previous day. He was detained temporarily and released only upon furnishing a written undertaking to seek removal of his name from the ECL prior to any future travel. Earlier, this Court in Usman Dar v. Federation of Pakistan through Secretary, Interior Division and 2 others (2024 YLR 1406) had declared the petitioner's earlier inclusion in the Provisional

National Identification List (“**PNIL**”) as illegal and directed its removal.

3. Learned counsel for the petitioner contends that the impugned placement of the petitioner’s name on the ECL on 05.12.2025 was arbitrary, *mala fide*, and in blatant disregard of a prior binding judgment of this Court, declaring his earlier inclusion in the Provisional National Identification List (PNIL) illegal. He submits that the petitioner was not issued any notice, nor afforded an opportunity of hearing, in violation of Articles 4, 9, 10-A, 15, and 25 of the Constitution of the Islamic Republic of Pakistan, 1973, rendering the action contrary to the principles of natural justice. He emphasizes that the existence of an alternate remedy under Section 3 of the Exit from Pakistan (Control) Ordinance, 1981, was neither efficacious nor expeditious, and thus could not oust the Court’s constitutional jurisdiction. He argues that mere pendency of criminal proceedings, in which the petitioner had been released on bail and had obtained the Trial Court’s permission to travel under Section 540-A Cr.P.C., could not justify curtailing his fundamental right to freedom of movement. Lastly, he argues that the right to travel abroad forms an integral part of personal liberty and can only be curtailed in accordance with law, for valid reasons, and through fair procedure, which is lacking in this case. In support, he has referred to Wattan Party through President v. Federation of Pakistan through Cabinet Committee of Privatization, Islamabad and others (PLD 2006 Supreme Court 697), Dr. Akhtar Hassan Khan and others v. Federation of Pakistan and others (2012 SCMR 455), Godho and 7 others v. The State (1968 P Cr. L J 791), State Bank of Pakistan v. Syed Nasir Hussain Zaidi and 5 others (PLD 1988 Karachi 379), Wajid Shams-ul-Hassan v. Federation of Pakistan through Secretary, Ministry of Interior, Islamabad (PLD 1997 Lahore 617), Mir Khalid Langov v. Secretary, Ministry of Interior, Government of Pakistan, Islamabad (PLD 2007 Quetta 41), Inam Akbar v.

Federation of Pakistan through Secretary, Ministry of Interior and others (PLD 2016 Lahore 553), Javed Khan v. Pakistan through Secretary Interior and 6 others (2017 YLR 2109), Sheikh Shan Ilahi v. Federation of Pakistan through Secretary Interior, Ministry of Interior, Islamabad and 6 others (PLD 2023 Lahore 359) and Usman Dar v. Federation of Pakistan through Secretary, Interior Division and 2 others (2024 YLR 1406).

4. On the other hand, learned Law Officer, in his reply to the amended petition, has raised a preliminary objection regarding maintainability of instant petition by contending that petitioner has already availed alternate and efficacious remedy by filing a review petition under Section 3 of the Exit from Pakistan (Control) Ordinance, 1981, which is pending before the Federal Cabinet. He contends that the placement of the petitioner's name on the Exit Control List was effected strictly in accordance with law, on the recommendation of the Home Department, Government of Punjab and the City Police Officer, Rawalpindi, in connection with FIR No.708/2023 involving offences under the Pakistan Penal Code and the Anti-Terrorism Act, 1997, and after due consideration by the Cabinet Sub-Committee under Rule 2(1)(c) of the Exit from Pakistan (Control) Rules, 2010, followed by approval of the Federal Cabinet. He maintains that no prior notice was required under the Ordinance of 1981, and the petitioner, being an accused on bail before the Anti-Terrorism Court, cannot seek to bypass the authority of the Trial Court. In support, he has relied upon Haq Nawaz and others v. The State and others (2000 SCMR 785), Chief Executive officer NPGCL, GENCO-III, TPS Muzafargarrah v. Khalid Umar Tariq Imran and others (2024 SCMR 518), Niaz Ahmed and another v. Aijaz Ahmed and others (PLD 2024 Supreme Court 1152), Qazi Mumtaz Hussain and others v. Government of Sindh through Secretary Revenue and others (2025 SCMR 939), Rana Riaz Ahmad and others v. The State (2007 YLR 1135), Muhammad Younas Marwat v. Government of

Pakistan through Secretary Ministry of Interior and 3 others (2010 YLR 1573), S. Akbar Ali Shah v. Federation of Islamic Republic of Pakistan through Secretary, Ministry of Interior (2011 MLD 1536), Javed Khan v. Pakistan through Secretary Interior and 6 others (2017 YLR 2109), Gohar Ullah v. Federation of Pakistan through Secretary, Ministry of Interior and others (2019 YLR 781), Mian Muhammad Shahbaz Sharif v. Federation of Pakistan and 4 others (2019 P Cr. L J 1123), Raja Pervez Ashraf v. Federation of Pakistan through Secretary Ministry of Interior, Islamabad and 2 others (PLD 2020 Islamabad 24) and Syed Ahmed Iqbal Ashraf v. Federation of Pakistan and others [PLJ 2025 Karachi 28 (DB)].

5. Arguments heard. Available record perused.

6. The preliminary objection regarding availability of alternate remedy under Section 3 of the Exit from Pakistan (Control) Ordinance, 1981 is carefully examined at the outset. It is settled by now that the existence of a statutory remedy does not operate as an absolute bar to the exercise of constitutional jurisdiction where the impugned action is alleged to be arbitrary, without lawful authority, or violative of fundamental rights. The superior Courts have consistently held that where an administrative measure *ex facie* lacks transparency, reasons or adherence to due process, relegation to a departmental review forum does not constitute efficacious remedy. In the present case, although the petitioner submitted a representation dated 15.12.2025 seeking removal of his name from the ECL, no decision has been communicated, thereby lending substance to the argument that the so-called remedy is neither prompt nor effective in the peculiar facts of the case, particularly when a fundamental right stands curtailed. Reference can be made to Dr. Joseph Wilson v. Federation of Pakistan through Secretary Ministry of Interior and others (2017 P Cr. L. J. 1569).

7. As regards the objection raised by the respondents that the petitioner ought to have approached the learned Anti-Terrorism Court in the first instance in view of the cases of Gohar Ullah, Raja Pervez Ashraf and Syed Ahmed Iqbal Ashraf supra, it is sufficient to observe that the learned Anti-Terrorism Court has already granted permission to the petitioner to travel abroad vide order dated 08.01.2025, whereby his personal attendance was dispensed with for the specified period and his duly appointed pleader was directed to represent him on each and every date of hearing, with further direction for issuance of necessary NOC in favour of DG Passports and Immigration to enable him to travel. It would be advantageous to reproduce the relevant extract of the aforesaid order, which is as follows:-

“Another application moved by Usman Dar accused seeking permission of this Court to go abroad for his business. In the written application, it is submitted that he intends to go w.e.f. 13.01.2025 and will return on 21.02.2025 so his personal attendance for the said period be also dispensed with. He has authorized his learned counsel Ghulam Hasnain Murtaza Sumbal advocate as his pleader to attend proceedings of the Court on his behalf. The application was seriously resisted by the learned prosecutors on behalf of the State.

Since, the said accused has already appointed his pleader Ghulam Hasnain Murtaza Sumbal advocate under section 4 of the Cr.P.C. so learned pleader is directed to attend court proceedings on behalf of Usman Dar accused on each and every date of hearing and with this condition his application is hereby **accepted**. Necessary NOC be issued in the name of DG Passports and Immigration so that the accused Usman Dar can travel abroad.”

In these circumstances, the precedents relied upon by the respondents are clearly distinguishable, as those cases were decided in situations where prior judicial permission to travel had not been granted or the factual matrix materially differed. In the present case, the petitioner is on bail and stands permitted by the learned Trial Court to be represented through counsel under

Section 540-A, Cr.P.C. The matter, therefore, does not relate to avoidance of trial proceedings but concerns the legality of an executive action that seeks to impose an additional restraint upon the petitioner's liberty despite subsisting judicial permission, without demonstrating any lawful or compelling justification.

8. On merits, the central question is whether the impugned action satisfies constitutional and legal standards governing curtailment of the right to travel. The right to travel abroad has been recognized by the superior Courts as an integral component to personal liberty protected under Articles 4, 9 and 15 of the Constitution. While the Federal Cabinet is empowered under Section 2 of the Ordinance of 1981 to regulate departure from Pakistan, such authority is not unfettered. It must be exercised in a fair, reasonable and transparent manner, supported by cogent reasons and consistent with principles of natural justice.

9. It is also of considerable relevance that the petitioner's conduct subsequent to the earlier judgment of this Court reported as Usman Dar v. Federation of Pakistan through Secretary, Interior Division and 2 others (2024 YLR 1406) supra, declaring his inclusion in the PNIL illegal demonstrates bona fides rather than abuse of process. The record reflects that after removal of his name from the Provisional National Identification List pursuant to judicial directions of this Court as well as learned Anti-Terrorism Court in terms of the order reproduced supra, the petitioner travelled abroad on nine different occasions and returned to Pakistan each time without any complaint of misuse of concession, evasion of process, or violation of bail conditions. No material has been placed before this Court to suggest that during any of those visits the petitioner attempted to abscond or obstruct proceedings pending against him. This consistent conduct materially fortifies the petitioner's assertion that he has respected the authority of the courts and complied with the law, and it substantially undermines any apprehension that his travel abroad poses a flight risk or threat

to the administration of justice. In constitutional adjudication concerning restraint upon liberty, past conduct is a relevant consideration, and in the present case the same tilts the balance in favour of the petitioner's bona fide intent. Reliance is placed upon Habibullah Niazi v. Federation of Pakistan through Federal Secretary, Ministry of Interior, Pakistan Secretariat, Islamabad and 2 others (PLD 2009 Karachi 243), Tanveer Hussain Manji and 3 others v. Federation of Pakistan through Secretary Interior and 3 others (2016 CLC 1534), Javed Iqbal v. Federation of Pakistan through Secretary Ministry of Interior and 3 others (2019 YLR 1247), Amanullah Memon v. Federation of Pakistan through Secretary, Ministry of Interior and another (2022 P Cr. L J 1217) and Sadaf Sharjeel and another v. National Accountability Bureau (Sindh) through Director General and another (2022 YLR 2441).

10. It is by now well entrenched that mere pendency of criminal proceedings does not *ipso facto* justify deprivation of the fundamental right to travel. Freedom of movement, including travel abroad, is an integral facet of personal liberty and cannot be curtailed except in accordance with law, supported by reasons and preceded by fair procedure. Although the Federal Government is empowered under Section 2 of the Exit from Pakistan (Control) Ordinance, 1981 to regulate departure from the country, such authority is not absolute or mechanical; it must reflect independent application of mind and demonstrable necessity in public interest. A generalized or omnibus action, taken without individualized assessment and without recording reasons showing how travel would prejudice investigation or trial, falls short of constitutional standards. The present impugned memorandum bears all the indicia of a non-speaking and mechanical order, passed without affording opportunity of hearing and without disclosing any tangible material necessitating such restraint, and therefore cannot withstand constitutional scrutiny. Reliance is placed upon The

Federal Government through Secretary Interior, Government of Pakistan v. Ms. Ayyan Ali and others (2017 SCMR 1179), Sikandar Hayat Khan and 4 others v. Government of Pakistan through Federal Secretary, Ministry of Interior, Islamabad and 5 others (PLD 2003 Peshawar 102), Hashmat Ali Chawla v. Federation of Pakistan and others (PLD 2003 Karachi 705), Mst. Nasreen Begum and another v. Ministry of Interior, Government of Pakistan through its Secretary and 2 others (PLD 2012 Islamabad 17), Tayyab Hussain Rizvi and others v. FOP and others (PLD 2015 Lahore 353) and Mian Muhammad Shahbaz Sharif v. Federation of Pakistan and 4 others (2019 P Cr. L. J. 1123).

11. A bare perusal of the impugned memorandum reveals that it has been issued in a mechanical manner without independent application of mind and without disclosing any reason whatsoever for placing the petitioner's name on the Exit Control List. Such a bald and non-speaking order squarely attracts the mischief of Section 24-A of the General Clauses Act, 1897, which obligates an authority to pass reasoned orders after due consideration. The superior Courts have consistently held that deprivation of the fundamental right to travel abroad cannot rest upon vague or unsubstantiated grounds, nor can it be justified merely on the basis of unadjudicated allegations. An administrative action curtailing liberty must be supported by recorded reasons and preceded by fair procedure. The absence of notice, hearing, and articulated justification renders the impugned action arbitrary and violative of Articles 4, 9 and 10-A of the Constitution. Reference is made to Messrs United Bank Ltd. v. Federation of Pakistan and others (2014 SCMR 856), Ali Muhammad Turab v. Federation of Pakistan and 2 others (PLD 2020 Islamabad 454) and Rasikh Elahi v. Federation of Pakistan through Secretary Ministry of Interior Islamabad and 4 others (2024 YLR 2616).

12. Viewed in the cumulative perspective of the facts, the applicable statutory framework, and the binding precedents, the impugned action dated 05.12.2025 suffers from arbitrariness and procedural impropriety. The placement of the petitioner's name on the ECL, without notice, without recorded reasons, and notwithstanding his compliance with judicial process, constitutes an unlawful curtailment of constitutionally protected liberty.

13. Consequently, the instant constitutional petition is **allowed** and the respondents are directed to remove forthwith the name of the petitioner from the Exit Control List. It is clarified that nothing observed herein shall prejudice any proceedings pending against the petitioner before any competent forum. The petitioner shall continue to remain bound by the conditions of bail and the directions of the learned Trial Court. To secure his attendance and safeguard the interests of justice, the petitioner is directed to furnish, as a one-time measure, a surety bond in the sum of Rs.10,00,000/- (Rupees Ten Lacs only) to the satisfaction of the learned Trial Court prior to availing the benefit of this judgment for travelling abroad, which shall remain operative for subsequent travel unless otherwise ordered by the Court. In the event the petitioner misuses the concession of travel, attempts to evade the process of law, or otherwise violates any condition of bail, it shall be open to the competent authority to initiate fresh proceedings for placement of his name on the Exit Control List, strictly in accordance with law, through a reasoned and speaking order passed after affording him an opportunity of hearing.

(Muhammad Sajid Mehmood Sethi)
Judge

APPROVED FOR REPORTING

Judge